



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DEC - 4 1992

DOT-E 10930

1. Suburban Propane, Whippany, New Jersey, is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to offer a package prescribed herein of a division 2.1 material for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of two DOT Specification 112J340W tank cars, containing liquified petroleum gas, which are leaking trace amounts of product from the liquid and vapor valve flanges, and provides no relief from any regulations other than as specifically stated.

2. BASIS. This emergency exemption is based on Suburban Propane's application of December 3, 1992, submitted in accordance with 49 CFR 107.113, and a determination that is necessary for the protection of life and property.

3. HAZARDOUS MATERIALS (Descriptor and class). Liquified petroleum gas, classed as a division 2.1 material.

4. PROPER SHIPPING NAME (49 CFR 172.101). Liquified petroleum gas.

5. REGULATION AFFECTED. 49 CFR 173.24(b)(1); 174.50(a).

6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

7. SAFETY CONTROL MEASURES.

a. Packaging prescribed are DOT Specification 112J340W tank cars, UTPX 933038 and UTPX 932184, meeting all DOT requirements (49 CFR 100-299), except that the tank cars are leaking trace amounts of product from the liquid and vapor valve flanges.

8. SPECIAL PROVISIONS.

a. Tank car UTPX 933038 and UTPX 932184 must be marked "DOT-E 10930" in four inch letters on a contrasting background above the DOT Specification number.

b. Shipment of the tank cars is authorized between CSX Transportation, Incorporated, Flint, Michigan, and Salmon Resources, Marysville, Michigan, a distance of approximately 65 miles, via the most direct route available utilizing CSX Transportation, Incorporated.

c. The Federal Railroad Administration is to be notified if any unusual incident, such as a derailment or exterior tank damage, occurs during the movement by contacting the:

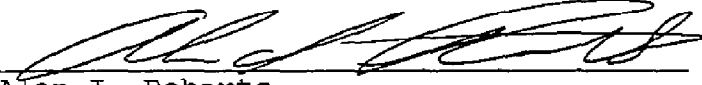
Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

d. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

10. EXPIRATION DATE. December 18, 1992.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Program.

Dist: FRA.